

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olubukola Ajayi	Team: Team # 4	CCRB Case #: 200812765	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/30/2008 1:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/28/2010	Precinct: 113
Date/Time CV Reported Tue, 09/02/2008 8:07 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/02/2008 8:07 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dennis Jaeger	09389	940297	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Bentivegna	13790	934482	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dennis Jaeger	Abuse: PO Dennis Jaeger refused to provide his name or shield number to § 87(2)(b)	A . Unfounded

Synopsis

This complaint was filed by § 87(2)(b) through the CCRB call processing system on September 2, 2008. At approximately 1:50PM on August 30, 2008, § 87(2)(b) and her young son were sitting in her vehicle, which was illegally parked in front of § 87(2)(b) in Queens, when a marked patrol vehicle pulled up next to her vehicle. PO Joseph Bentivegna and PO Dennis Jaeger of the 113th Precinct exited their patrol vehicle, approached § 87(2)(b)'s vehicle, and issued her a summons. § 87(2)(b) argued with PO Jaeger because she believed that he should have explained to her the reason why she was getting a summons. At this time, § 87(2)(b), § 87(2)(b)'s fiancé who had gone to the hardware store across the street from where her vehicle was parked, returned to the vehicle. § 87(2)(b) asked PO Jaeger for his information and what precinct he was from, but PO Jaeger did not respond as he and PO Bentivegna returned to their marked patrol vehicle and exited the scene (**Allegation A**).

§ 87(2)(g)
§ 87(2)(g), it is recommended that **Allegation A** be closed as **Unfounded**.

Summary of Complaint

On September 23, 2008, § 87(2)(b) was interviewed at CCRB (Encl.4A-4D). § 87(2)(b) provided follow-up information to the CCRB in a phone conversation with the CCRB on October 28, 2008 that was added to the following narrative. § 87(2)(g)

§ 87(2)(b) is a § 87(2)(b) black female, approximately § 87(2)(b)

At approximately 1:45PM on August 30, 2008, § 87(2)(b) sat in the front passenger seat while her young son sat behind her on the back seat of her 2002 white Nissan Altima vehicle, which was parked in front of § 87(2)(b) in Queens, when a marked police vehicle occupied by two white male police officers in uniform pulled up next to and parked in a 45 degrees position in front of § 87(2)(b)'s vehicle. PO Joseph Bentivegna (described as a white male in uniform with dark brown hair, approximately 5'10" tall and about 200lbs) and PO Dennis Jaeger (described as a white male in uniform, approximately 5'8" tall, 160lbs, and who had short and spiky dark blonde hair), both of whom are from the 113th Precinct, exited the patrol vehicle and approached § 87(2)(b)'s vehicle. When § 87(2)(b) saw PO Bentivegna and PO Jaeger approaching her vehicle, she looked up and saw a parking sign, which indicated that her fiancé, § 87(2)(b) illegally parked her vehicle at a no parking zone before he exited the vehicle and headed to the hardware store that was directly across the street from where her vehicle was parked. PO Bentivegna, who was from the driver's seat of the patrol vehicle, approached and stood on the front driver's side of § 87(2)(b)'s vehicle while PO Jaeger, who was from the front passenger seat of the patrol vehicle, approached and stood on the front passenger's side of § 87(2)(b)'s vehicle. § 87(2)(b) wound down her window and asked PO Jaeger what the problem was. At the same time, § 87(2)(b) noticed that PO Bentivegna was writing up a summons for her. § 87(2)(b) then told PO Jaeger that he did not have to give her ticket because she could move the vehicle. PO Jaeger responded that it was up to PO Bentivegna to decide whether he wanted to issue her a ticket or not. § 87(2)(b) argued with PO Jaeger in a loud voice because PO Jaeger was yelling at her.

Two or three minutes after the arrival of PO Jaeger or PO Bentivegna to the scene, § 87(2)(b) exited the hardware store and ran towards the driver's side of § 87(2)(b)'s vehicle when he saw PO Bentivegna and PO Jaeger. When § 87(2)(b) got to the driver's side of § 87(2)(b)'s vehicle, § 87(2)(b) spoke with PO Bentivegna. § 87(2)(b) did not hear what § 87(2)(b) and PO Bentivegna were saying to each other as she was still interacting with PO Jaeger. After speaking with PO Bentivegna, § 87(2)(b) got into the driver's seat and tried to calm § 87(2)(b) and PO Jaeger down, but § 87(2)(b) continued to argue with PO Jaeger. § 87(2)(b) told PO Jaeger that she would like to speak with PO Bentivegna since he was being rude to her and because he failed to explain to her why she was getting a ticket. PO Jaeger opened the unlocked door to the front passenger seat, stood in the doorway, and told § 87(2)(b) to exit the vehicle, but she refused to comply because she was afraid that PO Jaeger would get physical with her in front of her son. § 87(2)(b) told PO Jaeger that there was no reason for § 87(2)(b) to get out of her car because she had a right to express herself and had done nothing wrong. PO Jaeger then asked § 87(2)(b) for her identification, which she provided to him. After which, § 87(2)(b)

§ 87(2)(b) asked PO Jaeger once for his information (although, she later said that she asked PO Jaeger, about two or three times, for his information and what precinct he was from), but PO Jaeger did not respond to her question as he handed her identification back to her. By this time, PO Bentivegna had already issued the summons he had written up for § 87(2)(b) to § 87(2)(b). After which, PO Jaeger and PO Bentivegna returned to their patrol vehicle and exited the location.

Results of Investigation

Additional civilian statements

§ 87(2)(b) is a § 87(2)(b) black male – Encl.5A-5E

§ 87(2)(b) was interviewed at CCRB on September 23, 2008 (Encl. 5A-5E). § 87(2)(b) corroborated that on August 30, 2008, at approximately 1:50PM, he had parked in front § 87(2)(b) (a funeral home) in Queens. § 87(2)(b) confirmed that he had left § 87(2)(b) and his son (name not provided) in the vehicle with the engine running as he ran into the hardware store. § 87(2)(b) knew that he was parked in a “no parking zone” and stated that he had seen some police officers in a patrol vehicle as he was getting out of his white Nissan-Altima vehicle. § 87(2)(b) exited the hardware store, two or three minutes later, he observed PO Bentivegna (described as white police officer with dark- hair, who was about 5’8 tall and who had no facial hair) standing by the driver’s side of his vehicle while PO Jaeger (described as a well-built white police officer with blond or brownish hair and who has no facial hair) was standing on the passenger side of his vehicle.

§ 87(2)(b) approached the driver’s side of his vehicle and asked PO Bentivegna what the problem was and PO Bentivegna responded by pointing at the parking sign. PO Jaeger was arguing with § 87(2)(b) as PO Bentivegna was writing up a summons for § 87(2)(b). § 87(2)(b) did not hear § 87(2)(b) and PO Jaeger arguing when he was approaching his vehicle and only became aware of the of the argument when he got into his vehicle. PO Jaeger told § 87(2)(b) to be quiet because her son was in the car, but § 87(2)(b) was already upset and would not stop arguing with PO Jaeger. § 87(2)(b) mentioned that § 87(2)(b) was definitely yelling at PO Jaeger, who was trying to stay calm. § 87(2)(b) told PO Jaeger that she wanted to speak with PO Bentivegna because he seemed nice. PO Jaeger then opened her door and twice asked § 87(2)(b) to get out of the vehicle. PO Jaeger asked § 87(2)(b) for her driver’s license. § 87(2)(b) gave her identification to PO Jaeger after he had asked her for her identification three or four times. § 87(2)(b) confirmed that § 87(2)(b) asked PO Jaeger once for his badge number when he asked for her identification. § 87(2)(b) stated that PO Jaeger responded by pulling his shirt forward so that his shield was displayed. § 87(2)(b) confirmed that PO Bentivegna handed him the ticket he had written at this time and once PO Jaeger was done taking down § 87(2)(b)’s information from her driver’s license, PO Bentivegna and PO Jaeger returned to their patrol vehicle and left the scene.

Officer Identification

PO Joseph Bentivegna of the 113th Precinct was identified by name and badge number by § 87(2)(b) as a witness officer in this case. PO Bentivegna indicated in his statement to CCRB and in his memo book that he was assigned to work with PO Dennis Jaeger on August 30, 2008.

PO Joseph Bentivegna

On October 28, 2008, PO Joseph Bentivegna (shield #13790) was interviewed at the CCRB (Encl 7A-7E.). PO Bentivegna is a Caucasian male with brown hair and eyes who is § 87(2)(b)

On August 30, 2008, PO Bentivegna worked from 7:05AM until 3:40PM. He was assigned to Conditions and was assigned to a marked motor vehicle (RMP # 2111) with PO Dennis Jaeger (shield # 09389). PO Bentivegna was dressed in uniform. He had no relevant entries in his **memo book** regarding the incident.

PO Bentivegna was driving with PO Jaeger in a marked patrol vehicle on Sutphin Boulevard in Queens when he saw a vehicle parked in a no parking zone. PO Bentivegna stopped his patrol vehicle and he and PO Jaeger approached the vehicle. PO Bentivegna approached and stood on the driver’s side while PO Jaeger approached and stood on the passenger’s side. Upon getting to the car, PO Bentivegna observed § 87(2)(b) sitting in the front passenger seat of the vehicle. He also observed a child sitting in the back seat after he and PO Jaeger approached the vehicle.

PO Jaeger talked to § 87(2)(b) while PO Bentivegna wrote her a summons. PO Bentivegna could not really hear what was being said between § 87(2)(b) and PO Jaeger. At some point, § 87(2)(b) husband to § 87(2)(b) approached PO Bentivegna from behind. PO Bentivegna explained the situation to § 87(2)(b). PO Bentivegna did not see PO Jaeger open the door to the front passenger seat at any point during the interaction, but PO Bentivegna noticed that § 87(2)(b) was very agitated about being issued a summons even though PO Jaeger tried to calm her down. PO Bentivegna gave the summons to § 87(2)(b). PO Bentivegna said that § 87(2)(b) and § 87(2)(b) never asked him or his partner for his name or badge number and that he did not provide one to § 87(2)(b) and § 87(2)(b). PO Bentivegna did not know if PO Jaeger provided his information to § 87(2)(b). PO Bentivegna said that he heard PO Jaeger ask the woman, once, for her identification, but he did not know if she complied with the request or not.

PO Dennis Jaeger

On November 24, 2008, PO Dennis Jaeger (shield # 9389) was interviewed at the CCRB (Encl. 8A-8E). PO Jaeger is a Caucasian male police officer with blonde hair and blue eyes and who about 5'8" tall is and who weighs about 155lbs.

On August 30, 2008, Mr. Jaeger worked from 7:05AM to 3:40PM. He was assigned to a marked motor vehicle (RMP # 2111) with PO Bentivegna. PO Jaeger did not have any relevant entries in his **memo book** regarding the incident.

Please note that PO Jaeger said that he could not recall the details of the incident or the names of the civilians in this case, but said that § 87(2)(b) and § 87(2)(b) looked familiar after he was shown their photos. On August 30, 2008, at approximately 1:50PM, PO Jaeger and PO Bentivegna had been driving down § 87(2)(b) when they saw a vehicle parked in a no parking zone. PO Jaeger (who could not recall his position in the patrol vehicle) and PO Bentivegna parked the patrol vehicle, got out of the vehicle, and approached the vehicle that was illegally-parked. PO Bentivegna stood on the driver's side where he immediately began to write up a summons while PO Jaeger stood on the passenger's side of the illegally-parked vehicle. It was from this position that PO Jaeger, noticed that § 87(2)(b) was seating on the front passenger seat while § 87(2)(b)'s son sat on the backseat. § 87(2)(b) became agitated and angry when she saw PO Bentivegna writing her a summons. PO Jaeger then explained to § 87(2)(b) why PO Bentivegna was going to issue a summons, but he could not remember what his exact statements were.

Halfway through his interaction with § 87(2)(b) PO Jaeger told PO Bentivegna to watch his back because he had seen § 87(2)(b) (whom he referred to either as § 87(2)(b)'s boyfriend or husband) walking in their direct from across the street, which he believed § 87(2)(b) took badly. § 87(2)(b) told PO Jaeger and PO Bentivegna that they should have asked her to move her vehicle. PO Jaeger responded that it was up to PO Bentivegna whether he wanted to issue her a summons or not. § 87(2)(b) began to yell and curse at PO Jaeger in the presence of the now-frightened child; although, he could not recall what the exact curse words were. PO Jaeger remained professional and courteous towards § 87(2)(b) as she yelled at him because he was concerned for the safety of § 87(2)(b)'s son. § 87(2)(b) threatened PO Jaeger as she told him that "it [was] on" and reached repeatedly in and out of her pocketbook, which was on her lap.

PO Jaeger asked § 87(2)(b) for her identification because he was thinking about issuing § 87(2)(b) a ticket, but he decided against it because he did not want § 87(2)(b)'s son seeing his mother possibly getting arrested. § 87(2)(b) however, refused to give him her identification as she continued to reach inside and outside of her bag. PO Jaeger then opened the front passenger door because § 87(2)(b) had threatened him by fidgeting with her bag. PO Jaeger wanted to get close enough to § 87(2)(b) so that he could find out if she had a weapon in her bag. PO Jaeger, however, did not ask § 87(2)(b) to come out of the vehicle. § 87(2)(b) handed her identification to PO Jaeger after he had asked her for identification for the third time. PO Jaeger took down § 87(2)(b)'s name and returned the identification back to her when he was done. PO Bentivegna then handed over the ticket to § 87(2)(b) after which he and PO Jaeger returned back to their marked patrol vehicle. PO Jaeger could not recall if § 87(2)(b) asked him or PO Bentivegna for their information before they exited the scene of the incident.

Police Document

§ 87(2)(b)

Civilian's CCRB History

§ 87(2)(b) and § 87(2)(b) do not have any previous CCRB complaints.

Subject Officer's CCRB History

PO Jaeger does not have any previous substantiated CCRB allegation.

Conclusions and Recommendations

Pleading of Allegations

§ 87(2)(g)

Undisputed Facts

It is undisputed that PO Jaeger and PO Bentivegna approached § 87(2)(b)'s vehicle because it was parked in an illegal parking spot. It is undisputed that § 87(2)(b) and her young son were the only ones in the vehicle when the police officers approached the vehicle. It is undisputed that PO Bentivegna wrote up a parking violation summons, which he then issued to § 87(2)(b) before leaving the scene. It is undisputed that PO Jaeger opened § 87(2)(b)'s door. It is undisputed that PO Bentivegna asked § 87(2)(b) for her identification and she gave it to him.

Disputed Facts

§ 87(2)(g)

Assessments of Evidence

§ 87(2)(b) alleged that PO Jaeger refused to provide his name and shield number when she asked him for it. However, § 87(2)(b) said that PO Jaeger pulled the shirt of his uniform forward and displayed his shield when she asked him for his information while PO Jaeger said that he could not recall if § 87(2)(b) had asked him for his information. PO Bentivegna said that § 87(2)(b) and § 87(2)(b) never asked him or his partner for his name or badge number. § 87(2)(g)

the investigation determined that PO Jaeger displayed his information when asked.

Allegation A: PO Dennis Jaeger refused to provide his name or shield number to § 87(2)(b)

§ 87(2)(g)

, it is recommended that the ***Allegation A*** be closed as ***Unfounded***.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: